# Smt. Shefali Roy vs Hero Jaswant Dass And Others on 25 March, 1992

## Equivalent citations: AIR1992ALL254, AIR 1992 ALLAHABAD 254, 1992 ALL. L. J. 728, 1992 CIVILCOURTC 704, (1992) 2 ALL WC 1000, (1992) 20 ALL LR 831, (1992) 1 ALL RENTCAS 392, 1992 (1) BANKCAS 582

ORDER

1. Having heard learned counsel for the parties, we propose to dispose of this appeal finally at the admission stage.

2. The present appeal filed under 0.43, R. 1(r) of Civil P.C., is directed against an order dated 1-2-1992 passed by the learned Civil Judge, Kanpur Nagar in Civil Suit No. 839 of 1990, whereby application made under O.39, Rr. 1 & 2, C.P.C. by the plaintiff for restraining the defendants from interfering with her possession over the suit land, has been dismissed.

3. The appellant-plaintiff brought an action against the respondents seeking a relief for declaration that sale deeds executed by Hero Jaswant Das (Respondent No. 1) in favour of respondents are not binding on her. An application under O.39, Rr. 1 &2, C.P.C. was also made for restraining the respondents from interferring with her possession of the suit land.

4. In short the case of the appellant-plaintiff is as under:--

> The appellant-plaintiff is owner of plot Nos. 461, 360, 361, 381, 367, 368, 369, 374 & 376 measuring an area of 4 Bighas, 8 Biswas & 10 Biswansis located in village Gajjupurwa, Jajmau, Kanpur Nagar.

5. It is averred that the appellant wanted to dispose of the aforesaid agricultural holdings, and for that purpose bargains were going on with intending purchasers. Sheikh Abdul Rashid (Respondent No. 3), who is Secretary of Nagar Vikas Sahkari Avas Samiti Ltd. bABU Purwa, Kanpur, was also one of them and he agreed to purchase the aforesaid agricultural holdings for Rs. 12 lacs (12,00,000/-), and consequently Sheikh Abdul Rashid issued two cheques, one dated 27-1-1987 for an amount of Rs. 2,30,000/- and another dated 27-3-1987 for amount of Rs. 3,00,000/- for the purchase of agricultural holdings of the appellant. It appears that the aforesaid two cheques could not be honoured by the Bank. Having brought this fact to the notice of Sheikh Abdul Rashid, the parties further entered into an agreement on 17-6-1988 vide Annexure-1 for the sake (fake?) amount of Rs. 12 lacs. It is further averred that with the connivance of Hero Jaswant Das and Sheikh Abdul Rashid, a power of attorney on behalf of the appellant was got prepared in favour of Hero Jaswant Das (respondent No. 1) which is filed as Annexure-2.

6. In para 3 of the said power of attorney it is stipulated that power of attorney holder Hero J aswant Das shall take steps for obtaining necessary permissions for the sale from concerned departments,

ceiling department, income tax department etc. and also obtain income tax clearance certificate for the said agricutlural holdings, but neither any application was made for any permission nor permission was obtained.

7. On 21-6-1988 respondent No. 1 Hero Jaswant Das has executed a registered sale deed in favour of Sheikh Abdul Rashid (respondent No. 3) without taking necessary steps as well as without any consent of the plaintiff-appellant for a meagre amount of Rs. two lacs whereas vide Annexure-1 the respondent No. 3 had agreed to purchase the aforesaid agricultural holdings for Rs. 12,00,000/. (Twelve lacs),

8. The execution of power of attorney in favour of Hero Jaswant Das has been denied by the appellant and on that basis it is alleged that the sale deed dated 21-6-1988 is not binding on her and the respondents do not get any right and title by virtue of the alleged fictitious documents.

9. It is, also contended that when this forgery practised upon the appellant was brought to her notice, a first information report was lodged against respondent Nos. 1 and 3 and on that basis Police Station Chakeri, Kanpur Nagar registered a case on 7-10-1989 vide case crime No. 725 of 1989 for the offences punishable under Ss. 420/467/ 468/506/120, I.P.C, and the same is pending before the Court.

10. It is also averred that though the appellant has not executed any power of attorney in favour of respondent No. 1, but as a precautionary measure, notice was got published in the newspapers on 3-2-1989, 4-2-1989 and 6-2-1989 relating to forged power of attorney dated 17-6-1988 and it was warned that same may not be given effect to and any transaction if takes place on the strength of that power of attorney, the same shall be null and void. The publication in newspaper 'Times of India' dated 3-2-1989 is filed as Annexure-3.

11. It is also averred that the sale deed is full of anomalies in as much as in the power of attorney only plot Nos.360, 361, 367, 368, 369, 374 and 376 are mentioned whereas in the sale deed one more plot (No. 461) measuring area 0.19.0 has been written. Besides this in the sale deed according to its recital at one place full payment was said to have been made but just thereafter it is further recited that rupees one lac will be paid subsequently. Thoguh there is stipulation in the sale deed about handing over of possession of the sold property, but how it can be when respondent No. 1 himself was not in possession at any point of time. Besides this there is also no stipulation in the sale deed about any permission to sell from the ceiling authorities.

12. In the application filed by the appellant seeking injunction against the respondents, she has categorically stated the aforesaid facts and also contended that Prem Shanker Gupta, who was appointed Commissioner by the Court and who inspected the spot, submitted his report stating that respondents are doing illegal constructions, upon which the trial court on 14-12-1991 passed an order maintaining status quo.

13. The respondents while replying the injunction application, emerged with the plea that the suit as framed and filed, is not maintainable in view of proviso of S. 34 of the Specific Relief Act. Asserting

the validity of the power of attorney and the sale deed, the respondents contended that no fraud has been practised over the plaintiff-appellant but with her consent alone the documents have been got executed.

14. The trial court having reached the conclusion that no case for grant of temporary injunction is made out in favour of the plaintiff-appellant and also that the suit is not maintainable in view of S. 34 of the Specific Relief Act, vacated the interim injunction and rejected the application vide impugned order dated 1-2-1992.

15. Learned counsel appearing for the appellant reiterated the grounds which have been repelled by the trial Court contending that appellant has proved her case for grant of injunction and established the requirements for grant of injunction.

16. However, learned counsel appearing for the respondents while supporting the impugned order and reiterating the grounds taken before the trial Court, also raised a new ground in this appeal that proper Court-fee i.e. 1/5th of the value of subject-matter has not been paid by the plaintiff in accordance with amended provisions of S. 7(IV-A) (State of U.P. Amendment) of the Court-fees Act while seeking relief for declaration that the said documents are not binding on her, and therefore it is contended that no case is favour of the appellant has been made out for grant of injunction.

17. The principle upon which injunction is granted, is well settled. Party to the litigation, who seeks an injunction, must satisfy the Court that there is a serious question to be tried at the hearing of the suit and every probability tilts in his favour for the relief sought for i.e. prima facie is in his favour. However, at this juncture it is made clear prima facie case may not be confused in prima facie success, but simply if there is serious question to be tried, the test of prima facie is satisfied and further Courts interference is necessary without which a right accrued in favour of the concerned, cannot be protected from species of injury which is known as irreparable injury and comparative mischief which is likely to cause in the absence of the injunction will be greater and not compens-able, thus the balance of convenience also tilts in his favour. Broadly these principles apply where injunction is sought by the party.

18. Considerable arguments have been advanced by the learned counsel for the respondent that in view of State Amendment to the provisions of S. 7(iv-A) of Court-fees Act, in a suit for declaration where cancellation of document is involved, l/5th of the value of subject-matter of the property, Court-fee is to be paid, Strong reliance is made on Smt. Bibbi v. Shugan Chand, AIR 1968 All 216 (FB): (1967 All LJ 612) and Smt. Bina Rani v, Fakir Chand, 1985 All WC 772: (1986 All LJ 86).

19. Before dealing with this aspect, it is necessry to reproduce the relevant provisions of S. 7(iv-A) for brevity of the case:

> "In a suit for cancellation of a decree for money or other property having a money value or other document securing money or other property having such value, according to the value of the subject-matter of the suit and such value shall be deemed to be....."

20. No doubt the aforesaid provision is emphatic dealing with the point in issue. However, words used therein "other document securing money or other property having such value" require interpretation so as to find out pith and substance to this provision, that is what is the intention of legislature in putting the word "securing". This word "securing" is not only related to the money part of the decree but other property as well as used in this provision, and therefore word "securing" relates to recovery or possession of the other property, otherwise putting this word "securing" in this provision becomes meaningless. As such where money part or any other property is claimed by way of securing it, the plaintiff is certainly required to pay ad valorem Court-fee i.e. 1/5th of the value of subject-matter of the property. But where no relief is claimed in terms of the above referred provision, then certainly payment of Court-fee shall be governed under Art. 17, Schedule II of the Court-fees Act.

21. In the instance case no relief is claimed in terms of the above referred provision by the plaitniff, but simply a declaration is sought that the alleged sale deed be declared null and void.

22. The payment of Court-fee depends upon the averments of the plaint and the relief claimed and not on the averments of the written statement. A suit for mere declaration that the plaintiff is owner of the property in suit as claimed by the plaintiff in the instant case and incidentally claiming a declaration that the alleged sale deed be declared null and void, does not fall within the ambit of Section 7(iv-A) (State of U.P. Amendment). See State of U.P. v. Ramkrishan Burman, AIR 1971 SC 87 : (1971 All LJ 1), wherein considering this State of U.P. Amendment their Lordships of the Apex Court ruled that in a suit for mere declaration that the plaintiff is owner of certain properties, this U.P. Amendment is not attracted for the purposes of payment of Court-fee. According to their Lordships this U.P. Amendment relates to a decree for recovery of money or other property. It however, does not include a decree concerning title to money or other property, and, hence where mere declaration is involved, the payment of Court-fee is governed under Art. 17, Schedule II of the Court-fees Act. In view of the decision in Ramkrishan Burman's case (supra), we are of the opinion that the plaintiff has paid proper Court-fee.

23. As far as second submission made on behalf of the respondents giving reference to the provisions of S. 34 of Specific Relief Act is concerned that suit as framed and filed simpliciterfor declaration is not maintainable having not claimed other relief, is also of no help inasmuch as the words used in proviso of S. 34 are "further relief" and "no other relief". Further relief must flow necessarily from the relief of declaration and if further relief is remote and is not connected in any way with the cause of action accrued in favour of the plaintiff, then there is no need to claim a further relief and the proviso to S. 34 will not be a bar.

24. In the instant case the suit for declaration is filed that alleged sale deed executed by respondent No. 1 in favour of respondent No. 3 is not binding on her, to which admittedly she is not a party, and according to her she is in possession over the suit land, and hence under these set of facts as set out by the appellant in her plaint, the prayer for injunc-

tion is not a must, See AIR 1947 All 352.

25. The learned counsel for the respondents no doubt placed plethora of decisions to support his contention on the basis of proviso to S. 34 of the Specific Relief Act. In this connection, suffice it to say that there are so many authorities for and against but their application depends upon the facts and nature of each case. As discussed above, the authorities cited at the bar have no application to the facts of the instant case, e.g. learned counsel for the respondents placed reliance upon Jugraj Singh v. Jaswant Singh, AIR 1971 SC 761 and Ram Saran v. Suit. Ganga Devi, AIR 1972 SC 2685. In Jugraj's case (supra) in paragraph 11 it was held that there was proper execution of documents and registration and in the context it was held that other relief in view of the proviso was necessary. Similarly, in Ram Saran (supra) the plaintiff having not been in possession over the suit property did not seek further relief for possession and in that context it was held that suit was not maintainable, whereas in the instant case the Court has not yet reached the conclusion that the sale deed is proper. Besides this, it is the plaintiff's case that she is still in possession of the suit property.

26. Therefore, the trial Court while rejecting the injunction application on this ground appears to have misdirected itself in reaching the correct conclusion in the light of specific pleadings of the appellant.

27. In our opinion the suit as framed and filed neither suffers from proviso of S. 34 of the Specific Relief Act nor for want of proper Court-fee under S.4(iv-A) (State of U.P. Amendment) of Court-fees Act.

28. Learned counsel for the appellant assailed the order impugned inter alia on the ground that fraud has been practised upon the appellant by the respondents. At this stage we must observe that it is premature to reach at any positive conclusion where the parties have not yet entered into the dock affording opportunities to each other test the varacity of their statements.

29. The next submission made on behalf of learned counsel for the appellant is that no title of the suit land passed in favour of the vendee-respondent No. 3 inasmuch as recital relating to payment in the sale deed is ambiguous, at one place it is recited that whole sale consideration amounting to rupees two lacs has been paid but just thereafter it is recited that vendee shall pay rupees one lac to the vendor (respondent No. 1) subsequently. It is further contended that plot No. 461 does not find place in the general power of attorney whereas in the sale deed this plot No. 461 is mentioned. On these patent ambiguities, it is contended that on the face of the sale deed mere registration of sale deed does not convey the title.

30. No doubt, the provisions of S. 54 of the Transfer of Property Act are emphatic and prepayment of price is not sine qua npn being the condition precedent to the transfer of title of the land, but where patent ambi-buity is on the face of the sale deed, the Court is not lagging behind to ascertain the real intention between the vendor and vendee i.e. respondents Nos. 1 and 3 and the same could be gathered from the surrounding circumstances. The maxim "Caveat emptor" cannot be lost sight of that is the buyer has to be cautious as the risk is his and not that of the seller. In the instant case since recital is not clear and definite in positive terms in regard to receipt of full consideration and transfer of title, it is difficult to express any positive opinion at this stage that by virtue of the alleged sale deed title of the land in dispute passed in favour of respondent No. 3,

31. Learned counsel for the respondent in this context referred to a Division Bench decision of this Court in Gayatri Prasad v. Board of Revenue, 1973 ALJ 412 and contended that in view of the provisions of S, 47 of the Registration Act, a registered sale deed becomes effective from the date of its execu-tion and where price is not paid, the vendor I cannot resist the suit on the ground that title did not pass. True it is that is the requirement of S. 54 of the Transfer of Property Act.

32. But all the same in the instant case it is not the plaintiff who has executed the sale deed and claim that title does not pass in favour of respondent No. 3, but according to her behind her back and without her knowledge as pointed out by the learned counsel that she does not know Hindi yet the recitals of the power of attorney and the sale deed are in Hindi, fraud has been practised upon her and third party has executed the sale deed.

33. In the light of these facts pleaded for the decision of injunction application, the case tilts heavily in favour of the appellant-plaintiff, and for this limited purpose at this stage we are of the opinion that passing of title in favour of respondent No. 3 is doubtful.

34. While deciding this appeal as a matter of fact we were not inclined to probe in detail discussing pros and cons of the case as in our opinion at this stage there should not be any whisper of prejudice to either side who have to face the trial of the suit, but since learned counsel for the respondents has vehemently advnced arguments by citing catena of decisions referred to above and naturally expecting thereby its result, it became necessary to deal with this submission, and under these circumstances to do "Fiat Justita" between the parties, we observe that the sale deed as it stands today as discussed above does not inspire confidence that it passes title in favour of the respondents.

35. The learned counsel for the respondents further contended that injunction matter is a discretionary one and therefore no interference by this Court is called for.

36. No doubt, ordinarily no interference is called for by the appellate Court unless wrong approach is made by the Court in overlooking the material placed by a party to the proceedings. In the instant case as discussed above patent ambiguity has not been taken into consideration by the trial Court. Besides this, according to recital of the power of attorney respondent No. 1 has to obtain necessary permission from the Ceiling department and other concerned departments before executing the sale deed but the same admittedly have not been obtained.

37. In Bhagat Ram v. Kishan, AIR 1986 SC 962 the Apex Court of the land ruled that where obtaining permission is stipulated in the agreement and contrary to it sale deed is executed, on this score alone, it has been held that transfer is invalid for want of previous sanction. Though learned counsel for the respondents contended that despite stipulation of this term in the power of attorney, sanction is not necessary, but this submission is repudiated by the learned counsel for the appellant.

38. Be that as it may, it is unimaginable that once transaction having been entered into for rupees twelve lacs for the land in dispute, the same land is sold by respondent No. I to respondent No. 3 for a meagre amount of two lacs only. This type of transaction speaks itself in volumes and at this stage less said is better.

39. From the discussion aforesaid, we are of the opinion that the appellant has succeeded in making out a case for grant of injunction, and therefore while setting aside the impugned order dated 1-2-1992 we allow the prayer of the appellant for grant of injunction thereby restraining the respondents from interfering with her possession over the land in dispute till final decision of the suit.

40. In the result, the appeal succeeds and is allowed with costs.

41. Appeal allowed.